ALPHASTUD

Leading Value Sires

Enclosed 1. Tiger Tara NZ and 2. Live Or Die USA terms and conditions.

1. Tiger Tara NZ Terms and Conditions

Your access to and use of semen provided by EXIMIUS AUSTRALIA PTY LTD trading as Alphastud (ABN. 64156217015) is subject to the following terms and conditions.

Alphastud provides stallion services to customers to breed their mares. This includes stallion semen which can be ordered by our customers via the website www.alphastud.com.au or by emailing a **booking contract** to richard@alphastud.com.au. These terms set out the terms and conditions under which we agree to provide stallion services and semen to you. The semen is offered to you, conditional upon your acceptance without modification of all of these terms, including any other conditions and notices set out on the website, which together form a legally binding agreement between us and you in relation to the provision of semen to you. If anything in these terms is different to content available on the website, the provisions in these terms shall prevail.

Definitions
Alphastud - "we", "our", or "us"
Stallion services – provision of stallion semen, registration
Live foal – a newborn foal that stands and suckles.
Terms - terms and conditions
Customer – "you", "your", "owner", "lessee", "agent"
Mare – "mare" or "mares"
AI – artificial insemination
Booking contract – the form that enacts the agreement
Semen transport form – form that requests for semen to be transported
Submit – button on our website form to confirm an online order
Website – www.alphastud.com.au
+42 day pregnancy – a confirmed pregnancy at forty two days or more

Commencement Date
The agreement begins on the date that we sign the **booking contract** that you submit on the website or email to us.

Ordering Semen
You, your veterinarian or AI technician may order semen for transport via the **semen order tab** on the website. The semen transport fee must be paid before we will dispatch or release semen.

Authority
You confirm that you are the owner or lessee or agent of the mare and have authority to represent the owner(s) or lessee(s) of the mare(s) that you listed on the **booking contract**. You authorise your veterinarian, AI technician or stud master to discuss any details relevant to this service with any Alphastud representative.

Fees
The service fee that you enter in the field box "Service Fee" is the price that you have agreed with us.
The service fee is for the provision of semen only. All other costs associated with items such as AI etc. are your responsibility.

TIGER TARA NZ chilled semen - we will charge you a $100 (non-refundable) semen transport fee in the 2020 / 2021 breeding season. We will charge you a return service fee of $200 (non-refundable) should you require a return service to TIGER TARA NZ in the 2021 / 2022 in the event that your mare slips or births a dead foal.

Payment
You must pay us in full within 7 days of a confirmed 42 day positive scan.

Your Obligations
You should notify us within 7 days from abortion if your mare loses its foetus. You must notify us within 48 hours from foaling if your mare fails to deliver a live foal. You must provide a veterinarian certificate within 7 days from foaling if your mare fails to deliver a live foal. You must provide a veterinary certificate within 7 days if your mare dies or becomes unfit to breed.

Our Obligations
We will offer you a return service if your mare slips or fails to deliver a live foal.

Terms
Return services must be used in the 2021/2022 breeding season and are considered to be honoured by us when your mare is confirmed of a +42-day pregnancy. You will pay a $100 semen transport charge for each return service. We reserve the right to refuse service to any customer. We don't make any representations as to a stallion's fertility, including but not limited to its ability to cause a mare to become impregnated. This agreement shall not be assigned nor transferred. This Agreement will be governed by the laws of the State of NSW, and the parties expressly submit to the jurisdiction of the courts of this State. You are entitled to one pregnancy per service fee. We own all unused semen.

Termination
This agreement is terminated if we determine that the mare has not been properly cared for during her pregnancy and foaling. This agreement is terminated if you don't satisfy your obligations or if any other term in our agreement is breached. This includes any late payments.

2. Live Or Die USA Terms and Conditions

Your access to and use of frozen semen provided by EXIMIUS AUSTRALIA PTY LTD trading as Alphastud (ABN. 64156217015) is subject to the following terms and conditions.

Alphastud provides stallion services to customers to breed their mares. This includes frozen stallion semen which can be ordered by our customers via the website www.alphastud.com.au or by emailing a **booking contract** to richard@alphastud.com.au. These terms set out the terms and conditions under which we agree to provide stallion services and semen to you. The semen is offered to you, conditional upon your acceptance without modification of all of these terms, including any other conditions and notices set out on the website, which together form a legally binding agreement between us and you in relation to the provision of semen to you. If anything in these terms is different to content available on the website, the provisions in these terms shall prevail.

Definitions
Alphastud - "we", "our", or "us"
Stallion services – provision of frozen stallion semen, registration
Live foal – a newborn foal that stands and suckles.
Terms - terms and conditions
Customer – "you", "your", "owner", "lessee", "agent"
Mare – "mare" or "mares"
AI – artificial insemination
Booking contract – the form that enacts the agreement
Semen transport form – form that requests for semen to be transported
Submit – button on our website form to confirm an online order
Website – www.alphastud.com.au
+42 day pregnancy – a confirmed pregnancy at forty two days or more

Commencement Date
The agreement begins on the date that we sign the **booking contract** that you submit on the website or email to us.

Ordering Semen
You, your veterinarian or AI technician may order semen for transport via the **semen order tab** on the website. The semen transport fee must be paid before we will dispatch or release semen.

Authority

You confirm that you are the owner or lessee or agent of the mare and have authority to represent the owner(s) or lessee(s) of the mare(s) that you listed on the **booking contract**. You authorise your veterinarian, AI technician or stud master to discuss any details relevant to this service with any Alphastud representative.

Fees

The service fee that you enter in the field box "Service Fee" is the price that you have agreed with us.
The service fee is for the provision of frozen semen only. All other costs associated with items such as frozen semen AI are your responsibility. We will charge you a $200 (non-refundable) semen transport fee in the 2020 / 2021 breeding season. Should you re-locate your mare and require us to onforward semen then we will charge you the additional costs. Another transport fee will be issued to you should you require further semen in the 2020 / 2021 breeding season. Any credit card charges or fees incurred to process any payments will be paid by you.
We will charge you a return service fee of $300 (non-refundable) should you require a return service.

Payment

You must pay us in full within 7 days of the birth of a live.

Your Obligations

You must only engage our approved Veterinarians or AI technicians to inseminate your mare. You should notify us within 7 days from abortion if your mare loses its foetus. You must notify us within 48 hours from foaling if your mare fails to deliver a live foal. You must provide a veterinarian certificate within 7 days from foaling if your mare fails to deliver a live foal. You must provide a veterinary certificate within 7 days if your mare dies or becomes unfit to breed.

Our Obligations

We will offer you a return service if your mare misses, loses its foetus or fails to deliver a live foal.

Terms

Return services must be used in the 2021/2022 breeding season and are considered to be honoured by us when your mare is confirmed of a +42-day pregnancy. You will pay a $200 semen transport charge for each return service. We reserve the right to refuse service to any customer. We don't make any representations as to a stallion's fertility, including but not limited to its ability to cause a mare to become impregnated. This agreement shall not be assigned nor transferred. This Agreement will be governed by the laws of the State of NSW, and the parties expressly submit to the jurisdiction of the courts of this State. You are entitled to one pregnancy per service fee. We own all unused semen. We reserve the right to move semen at any time.

Termination

This agreement is terminated if we determine that the mare has not been properly cared for during her pregnancy and foaling. This agreement is terminated if you don't satisfy your obligations or if any other term in our agreement is breached. This includes any late payments.